

Calendar Line 6 & 7

Case Name: *Dresser, et al. v. Arghavan Amini, et al.*

Case No.: 24CV452320

Before the Court is Defendants Arghavan Amini and Syed Reza Vaghefi's (collectively, "Defendants") demurrer to the Second Amended Complaint ("SAC") filed by Plaintiffs Elma F. Dresser and William C. Dresser (collectively, "Plaintiffs") and motion to strike portions contained therein.

I. BACKGROUND

This is an action for breach of contract and trespass, among other things. According to the allegations of the SAC, on October 23, 2009, Plaintiffs entered written lease with Mr. Sahaj Grewall for property known as 18613 Devon Avenue, Saratoga, California 95070, bearing APN 389-13-048. (SAC, ¶ 10.) The Lease commenced on November 1, 2009 and was extended several times by agreement, including the Lease Extension Agreement dated June 11, 2022, which extended the Lease from July 1, 2022 to June 30, 2026 (the "Lease Extension"). (*Id.* at ¶¶ 12-13.) Plaintiffs and Mr. Grewall negotiated the Lease Extension to ensure Plaintiffs would remain as residents of the Property until after their youngest son graduates high school in June 2026. (*Id.* at ¶ 14.)

On May 3, 2024, Mr. Grewall sold the Property to Defendants, who assumed the obligations under the Lease and the Lease Extension. (SAC, ¶¶ 15-16.) Defendants financed the purchase with a deed of trust that required Defendants, as Borrower, to "occupy, establish, and use the Property as Borrower's principal residence within 60 days after the execution." (*Id.* at ¶ 17.) The deed of trust further provided that Defendants would be in default if Defendants, during the loan application process, "misrepresent Borrower's occupancy or intended occupancy of the Property as the Borrower's principal residence." (*Ibid.*) Defendants purchased the Property subject to a substantial loan, the interest of which is greater than the rent payments due under the Lease. (*Id.* at ¶ 18.) Defendants purchased the Property "as is" after viewing the Property multiple times and receiving disclosures from Mr. Grewall concerning the condition of the Property. (*Id.* at ¶ 19.) Defendants purchased the Property with the intent to demolish the existing house and all structures on the Property to rebuild a newer house. (*Id.* at ¶ 20.)

Since May 2024, Defendants have engaged in a campaign of harassment (e.g., refusing to repair miscellaneous problems with the house, threatening to demolish a porch and storage shed, claiming to apply for a demolition permit) against Plaintiffs to cause them to vacate the Property by coercion and fraud. (SAC, ¶¶ 21-24.) Defendants also engaged in acts constituting invasion of privacy, including, but not limited to:

- Recording private conversations;
- Entering the Property for one purpose, and then entering private bedrooms to take photos;
- Demanding access to the Property without Plaintiffs' presence, and continuing to do so even though Defendants did not confine themselves to the inspection or work they were going to do;

- Sending texts and emails containing false and defamatory allegations to Plaintiffs, a real estate agent, and Mr. Grewall;
- Entering the Property for the purported intent of inspection, but instead for purposes of intimidation and engaging in lengthy arguments and confrontations;
- Conducting repeated, unreasonable inspections of the Property, during which Defendants acted in an intimidating manner and made demeaning comments;
- Threatening to defame Plaintiffs; and
- Lying to Deputy Sheriffs during a civil standby that Plaintiffs had hit Amini

(SAC, ¶ 26.)

Amini filed an application for Civil Harassment Restraining Order (“CHRO”), in which she admits going to the Property and recording conversations. (SAC, ¶¶ 27, 31.) Within the CHRO application, Defendants stated they did not want to contact plaintiff William Dresser and that Defendants could not access the Property. (*Id.* at ¶ 30.)

On February 1, 2025, Plaintiffs deducted \$1,494.22 in “Repair and Deduct” expenses from their rent pursuant to Civil Code section 1942(a). (SAC, ¶ 34.) In retaliation, on February 14, 2025, Amini posted a 3-Day Notice to Pay Rent or Quit dated February 11, 2025 (the “Three-Day Notice”). (*Id.* at ¶ 35.)

Plaintiffs initiated this action in November 2024 and filed the First Amended Complaint (“FAC”) on March 26, 2025, asserting claims for: (1) breach of written contract; (2) breach of implied covenant of quiet enjoyment; (3) trespass; (4) invasion of privacy; (5) defamation; (6) elder abuse; (7) intentional infliction of emotional distress (“IIED”); (8) violation of Bane Act; (9) negligence; (10) negligent infliction of emotional distress (“NIED”); (11) unfair business practices in violation of Business and Professions Code sections 1720 et seq.; and (12) retaliation in violation of Civil Code sections 1942, 1942.5.

In December 2025, Defendants demurred to each of the claims asserted in the FAC on the grounds of failure to state sufficient facts and uncertainty and moved to strike portions of the pleading. (Code Civ. Proc., §§ 430.10, subds. (e) and (f), 435 and 436.) Plaintiffs opposed the motion. On December 12, 2025, the Court (Hon. Pennypacker) issued an order overruling the demurrer on the ground of uncertainty in its entirety, overruling the demurrer on the ground of failure to state sufficient facts as to the second, third, fourth, fifth, ninth, tenth and eleventh causes of action and sustaining the demurrer on that ground as to the first, sixth, seventh, eighth and twelfth causes of action. The motion to strike was granted as to Plaintiffs’ request for punitive damages sought in connection with the second cause of action, Plaintiffs’ request for attorney’s fees sought in connection with the negligence claim and Plaintiffs’ request for declaratory relief. It was otherwise denied.

Plaintiffs filed the operative SAC on January 2, 2026, asserting the same claims as the FAC save the addition of a thirteenth cause of action for declaratory relief. Defendants now demur to the first (breach of written contract), third (trespass), sixth (elder abuse), seventh (IIED) and eighth (violation of Bane Act) causes of action on the grounds of failure to state sufficient facts and uncertainty. (Code Civ. Proc., § 430.10, subds. (e) and (f).) They also move to strike portions of the SAC. (Code Civ. Proc., §§ 435 and 436.)

II. DEMURRER

Defendants' demurrer to the first, third, sixth, seventh and eighth causes of action on the ground of uncertainty is **OVERRULED**. As the Court already held in its order on the demurrer to the FAC, as Defendants clearly understand the nature of each of the claims being asserted against them and the absence of certain details does not render the pleading so unclear that they cannot reasonably respond, there is no basis to sustain the demurrer on this ground. (See *Butler v. Sequiera* (1950) 100 Cal.App.2d 143, 145-146 ["[a] special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations already made."]; see also *A.J. Fistes, supra*, 38 Cal.App.5th at p. 695 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures."].)

Defendants' demurrer to the first cause of action (breach of written contract) on the ground of failure to state facts sufficient to constitute a cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**. Previously, the Court sustained the demurrer to this claim in the FAC due to Plaintiffs' failure to identify the provision of the Lease that was allegedly breached by Defendants. Defendants maintain that this cause of action still suffers from the same defect in the SAC, with new allegations that they "were obligated to perform and comply with the Lease provisions to lease the 'premises' and assuming obligations thereunder including ensuring Plaintiffs' quiet possession and enjoyment of the Property throughout the duration of the Lease, and including to maintain the Property" (SAC, ¶ 45) failing to correct this deficiency. The Court agrees. As Defendants argue, Plaintiffs' assertion that they may plead the legal effect of the contract rather than its precise language ignores the nature of the conduct at issue. As alleged in the SAC, the first cause of action is essentially one for failure to exercise reasonable care in managing the property "by not providing a safe, sanitary, or habitable place to live," and the failure to maintain a habitable premises is actionable as a statutory claim under Civil Code section 1714. It is not, in the absence of a specific provision of the Lease, a claim for breach of contract as pleaded by Plaintiffs in the SAC.

Defendants' demurrer to the third cause of action (trespass) on the ground of failure to state facts sufficient to constitute a cause of action is **OVERRULED**. The Court previously overruled Defendants' demurrer to this claim as pleaded in the FAC, and "where a prior demurrer was sustained as to some causes of action but overruled as to others, a defendant may not demur again on the same grounds to those portions of an amended pleading as to which the prior demurrer was *overruled*." (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1035, internal citation omitted, emphasis in original.)

Defendants' demurrer to the sixth cause of action (elder abuse) on the ground of failure to state facts sufficient to constitute a cause of action is **SUSTAINED WITHOUT LEAVE TO AMEND**. The demurrer to this claim in the FAC was sustained due to Plaintiffs' failure to allege that a property right had actually been taken from them or that they were otherwise deprived of such a right, and that Defendants knew or should have known that the conduct upon which the claim is based was likely to be harmful to the elder in question. Defendants persuasively argue that the taking/deprivation allegation defect is still absent in the SAC, with no allegations that Plaintiffs no longer reside at the Property or are otherwise prevented from accessing it. The new allegations provided by paragraph 97 relate to Plaintiffs' claims for harassment, trespass, breach of quiet enjoyment and habitability but do not support a claim for "financial abuse" of an elder, particularly when the purpose of the Elder Abuse Act (see

Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 787 [stating that the purpose is to “protect a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect”]) is considered.

Defendants’ demurrer to the seventh cause of action (IIED) on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. The demurrer to this claim as alleged in the FAC was sustained due to Plaintiffs’ failure to explain how Defendants’ purported pattern of harassment, refusal to make necessary repairs, lies concerning the status of building permits, trespass and illegal recording constituted outrageous conduct that caused “emotional distress of such a substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.) Plaintiffs have not added any new or different facts to the SAC so as to compel the Court to depart from its prior conclusion that outrageous conduct within the meaning of a claim for IIED has not been pleaded, and Plaintiffs’ reliance on paragraph 32 of the SAC, which contains allegation regarding Amini’s application for a CHRO, does help them because as the Court previously ruled, allegations relating to Defendants’ CHRO litigation activity is subject to the litigation privilege.

Defendants’ demurrer to the eighth cause of action (violation of the Bane Act) on the ground of failure to state facts sufficient to constitute a cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. This claim as pleaded in the FAC was found to be defective because Plaintiffs failed to plead speech by Defendants which threatened violence as required by the Bane Act. (See Civ. Code § 52.1, subd. (k).) While Plaintiffs added new allegations to this claim (see SAC, ¶¶ 110-111), these allegations do not actually contain any new or different facts from the FAC, nor the specificity needed to state a statutory cause of action. Plaintiffs simply have not pleaded any *specific* act of violence or speech threatening violence by Defendants. Consequently, they still have not stated a claim for violation of the Bane Act.

III. MOTION TO STRIKE

With their motion, Defendants move to strike paragraphs 27, 28, 30, 31, 32, 87, 106, paragraph 4 of the prayer for relief, and the thirteenth cause of action.

The motion is GRANTED WITHOUT LEAVE as to paragraphs 27, 28, 32 and 87, DENIED as to paragraphs 30, 31, paragraph 4 of the prayer for relief and the thirteenth cause of action, and DENIED AS MOOT as to paragraph 106. Plaintiffs have not pleaded or otherwise identified a contractual or statutory basis for their request for attorney’s fees in connection with the fourth cause of action for invasion of privacy. As for the newly added thirteenth cause of action, the Court believes that its addition is within the scope of amendment given the Court’s prior ruling on the motion to strike portions of the FAC which pertained to Plaintiffs’ prayer for declaratory relief. (See *Patrick v. Alcer Corp.* (2008) 167 Cal.App.4th 995, 1015 [addition of new cause of action may be proper when it “directly responds to the court’s reason for sustaining the earlier demurrer.”].)

The Court will prepare the final order.

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